

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #9	CCRB Case #: 201509507	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/31/2015 11:40 PM	Location of Incident: 41st Precinct stationhouse	Precinct: 41	18 Mo. SOL 4/30/2017	EO SOL 4/30/2017	
Date/Time CV Reported Sun, 11/01/2015 1:18 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/09/2015 11:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Kuhl	08652	950709	041 PCT
2. POM Jose Torres	10511	946334	041 PCT
3. POM Lawrence Sanchez	26252	942502	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jose Torres	Force: PO Jose Torres used physical force against § 87(2)(b)	
B.POM Lawrence Sanchez	Force: PO Lawrence Sanchez used physical force against § 87(2)(b)	
C.POM Matthew Kuhl	Force: PO Matthew Kuhl used physical force against § 87(2)(b)	

Case Summary

On November 1, 2015, Sgt. Miroslav Maric of the 41st Precinct called the IAB Command Center and filed this complaint (IAB original log #15-33464). The CCRB received the complaint on November 9, 2015.

Multiple efforts were made to establish contact with the sole victim, § 87(2)(b). On November 9, 2015, a first please call letter was mailed to § 87(2)(b). No telephone number was listed for § 87(2)(b) in IAB's referral to the CCRB. On November 12, 2015, the undersigned confirmed with IAB that the original log did not include a telephone number for § 87(2)(b). IAB reported that there was no call-out performed and there was not an open investigation in regards to this incident. LexisNexis, Yellow Pages, White Pages, CTS, and Cole Directory searches yielded negative results for a telephone number for § 87(2)(b). On November 17, 2015, the undersigned spoke with § 87(2)(b)'s attorney, § 87(2)(b) of Bronx Defenders, and § 87(2)(b) reported that she did not have any contact information for § 87(2)(b).

On November 13, 2015, a BADS search of all accessible arrest records for § 87(2)(b) revealed no telephone numbers or email addresses for § 87(2)(b). Only one of the accessible arrest reports, from 2012, indicated that § 87(2)(b) made a telephone call while in police custody. This number was called on November 13, 2015, November 16, 2015, and November 18, 2015, and each time a voicemail message was left requesting that § 87(2)(b) contact the CCRB. On November 18, 2015, a final please call letter was mailed to § 87(2)(b).

On November 23, 2015, the undersigned called the above-referenced number and spoke with a woman who identified herself as § 87(2)(b)'s mother, § 87(2)(b). § 87(2)(b) said that § 87(2)(b) did not currently have a cellphone, and that she did not have any contact information for § 87(2)(b) aside from her number (the number which was dialed) and her mailing address (the same address the CCRB had listed for § 87(2)(b)). § 87(2)(b) reported that § 87(2)(b) usually comes to her residence daily, and she agreed to have § 87(2)(b) contact the CCRB. On November 23, 2015, § 87(2)(b) was mailed a second final please call letter. None of the please call letters have been returned by the United States Postal Service. On November 27, 2015, the undersigned called and § 87(2)(b) answered. § 87(2)(b) said that she would see § 87(2)(b) later that day, and that she would have § 87(2)(b) contact the undersigned. On November 30, 2015, the undersigned called and left a voicemail message requesting that § 87(2)(b) contact the CCRB.

To date, § 87(2)(b) has not contacted the CCRB, nor has the CCRB established contact with § 87(2)(b).
§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date